

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 06/12/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV406660	American Express National Bank v. Merquais Nabizada	Motion: Vacate Please Ctrl Click (or scroll down) on Line 1
LINE 2	25CV465349	Yiting Zhao et al vs Dr. Yueyue Guo, LAc et al	Hearing: Petition Compel Arbitration Please Ctrl Click (or scroll down) on Line 2
LINE 3	25CV472932	Keep America Safe and Beautiful vs Trademark Global LLC	Hearing: Motion to Approve Proposition 65 Settlement and Consent Judgement Please Ctrl Click (or scroll down) on Line 3
LINE 4	25CV474734	Wells Fargo Bank, N.A. vs Jean Ansaldo	Hearing: Motion Summary Judgment Notice is proper. No opposition has been filed. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff’s motion is granted. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 5 LINE 6	25CV477277	Qingyu Liang vs Yu Zhu	Motion: Strike & Demurrer Please Ctrl Click (or scroll down) on Line 5 for Lines 5 & 6

Calendar Line 1

Case Name: *American Express National Bank vs. Merquais Nabizada*
Case No.: 22CV406660

PLAINTIFF'S MOTION TO VACATE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6

The parties entered into a written settlement agreement on March 8, 2024 resolving this action. The agreement was signed by Defendant and by Plaintiff's counsel on Plaintiff's behalf and satisfies the requirements of Code of Civil Procedure section 664.6. The agreement sets forth the material settlement terms, including the amount owed, payment schedule, and default provisions.

On March 12, 2024, the Court dismissed the action without prejudice and expressly retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the settlement and enter judgment upon default.

Plaintiff has established that Defendant defaulted under the settlement agreement. Defendant has not made payment since March 2024, the first month payments were due pursuant to the parties' stipulation. Plaintiff provided written notice of default as required by the agreement on June 26, 2024, and afforded Defendant the contractual opportunity to cure. Defendant failed to cure the default. No opposition has been filed by Defendant to the pending motion.

Pursuant to the terms of the settlement agreement and the Court's retained jurisdiction, Plaintiff is entitled to entry of judgment. The requested amount of \$12,952.92, consisting of the unpaid settlement balance and recoverable costs, is supported by the declaration and exhibits submitted in support of the motion.

Accordingly:

1. The motion is GRANTED.
2. The conditional dismissal is VACATED to the extent necessary to enforce the settlement agreement;
3. Judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$12,952.92.

Plaintiff to submit the proposed order and judgment accompanied by the necessary Form EFS 020 within 7 days of the hearing.